

10	Palacios Mundo v. Softscapes the Art of Landscape 2021-01220116	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$212,500 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff (not to exceed); \$63,750.00 for attorneys' fees (not to exceed); \$20,000.00 for attorneys' costs (not to exceed); \$8,750.00 for settlement administration fees (not to exceed); and \$10,625.00 total PAGA penalties (\$7,968.75 to LWDA). Plaintiff is ordered to file and serve <u>by August 27, 2026</u> a revised proposed order (stating the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendments thereto, notice packet (<u>in all necessary languages</u>)). The parties are also ordered to file by August 27, 2026 a further amendment to the settlement agreement addressing the following issue: 1. The court has twice ordered the parties to remove the overbroad and ambiguous term "agents" from the Released Parties provision in paragraph 1.41. ROA 139, 167. The "Released Parties" provision in the second amendment to the settlement agreement continues to include that term. The parties are ordered to file by August 27, 2026 a further amendment to the settlement agreement removing the term "agents" from the Released Parties provision in paragraph 1.41. In addition, the notice should be revised as follows: 2. The definition of "Released Parties" in the notice should be revised as stated above. 3. In the section entitled "Summary of the Settlement Terms," subsection (3) should be replaced with the following: "attorneys' fees not to exceed \$63,750.00." The final approval hearing is scheduled for <u>January 14, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
11	Perdomo v. Western Residential, Inc. 2024-01375618	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of a \$500,000 class

action and PAGA settlement. The court has the following questions and comments:

As to the settlement:

1. Does plaintiff anticipate receiving any compensation for any individual claims?
2. Plaintiff dismissed defendant UDR, Inc. on May 23, 2024 (ROA 39). Why is UDR, Inc. a party to the settlement agreement?
3. The "Released Class Claims" provision in paragraph 28 is overbroad. The release of the class members' claims must be fairly tailored to the claims that were or reasonably could have been asserted in the lawsuit based on the facts alleged in the operative complaint. The following phrases should be removed: (i) "rights, demands, liabilities and causes of action"; (ii) "same or similar"; and (iii) all text including and following the phrase "including the following claims," other than the last sentence of paragraph 28. In addition, the phrase "and claims asserted" should be replaced with "stated."
4. Paragraph 29 is inconsistent with paragraph 67. In the "Released PAGA Claims" provision in paragraph 29, the phrase "for civil penalties" should be inserted after "all PAGA claims" and before "that could have been asserted." The following phrases should be removed: (i) "same or similar"; and (ii) "and claims."
5. The "Released Parties" provision in paragraph 30 of the settlement agreement is overbroad as it includes unrelated, unidentified and/or ambiguous third parties such as "direct or indirect parents, sister or related entities, acquired companies," "affiliates," and "each of its or their past, present and future owners, officers, directors, employees, partners, members, shareholders and agents, attorneys, insurers, reinsurers, heir [sic], representatives, accountants, auditors, consultants, and any individual or entity which could be jointly liable with Defendants." In addition, why are United Dominion Realty, L.P., UDR California GP, LLC, UDR California GP II, LLC and Eastern Residential, Inc. appropriately included in the release?
6. Plaintiff's counsel seeks costs not to exceed \$25,000. Plaintiff's counsel should provide an itemized list of costs incurred to date. Nonrecoverable items such as postage, mailing and legal research charges should not be included.
7. Plaintiff seeks an enhancement award of \$10,000. The settlement agreement states the enhancement award "is in exchange for the General Release of Plaintiff's individual claims and for his time, effort, and risk in

		bringing and prosecuting the Action.” Settlement Agreement ¶ 43. An enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action, and, in some circumstances, to recognize their willingness to act as a private attorney general. The court is unlikely to approve a settlement that provides an enhancement award in exchange for a general release. 8. The last two sentences of paragraph 54 should be revised to state: (i) the parties shall file with the court all disputes submitted by class members, the evidence submitted, and the resolution of the disputes, and (ii) although the settlement administrator may make the initial decision regarding claim disputes, the court may review any decision made by the settlement administrator regarding a claim dispute. 9. Paragraph 89 should be revised to state that the prevailing party attorneys’ fees and costs provision in that paragraph will not be enforced against unnamed class members and/or unnamed aggrieved employees. <u>As to the notice:</u> 10. The notice should be revised consistent with the above. 11. The phrase “AND PAGA” should be inserted after “CLASS ACTION” in the title of the notice. 12. The second sentence of the first paragraph of section 5 should be removed. 13. In section 5(A), the following phrase should be removed: “30% of the Gross Settlement Amount or.” 14. In section 5(C), the following phrase should be removed: “in an amount.” In addition, as stated above, the court is unlikely to approve a settlement that provides an enhancement award in exchange for a general release. 15. In section 5(D), the following phrase should be removed: “in an amount.” 16. In the third sentence of the first paragraph of section 12, the word “must” should be replaced with “may.” The following phrase should be inserted at the end of the same sentence: “or appear at the Final Approval Hearing.” 17. Section 18 should state that the settlement administrator will post all key documents on its website, including the operative complaint, the settlement agreement and any amendments, the class notice and any included forms, the orders granting preliminary and final approval, and
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		the judgment. The judgment should be posted for at least 180 days. 18. The following statement should be removed from the top of the exclusion form as it is redundant of other information on the form: "IF YOU COMPLETE THIS FORM YOU WILL NOT RECEIVE YOUR SHARE OF [THE] CLASS SETTLEMENT BENEFITS UNDER THE SETTLEMENT." 19. In the first sentence of the bolded paragraph above the "Employee Name" line on the exclusion form, the word "class" should be inserted after "the" and before "settlement." 20. The third sentence of the first paragraph of the objection form should be removed. 21. The following phrase should be removed from the first sentence of the second paragraph of the objection form: "if you submit a timely and valid written statement of objection." 22. The second and third sentences of the second paragraph of the objection form should be removed. 23. The settlement administrator's invoice includes a charge for a Spanish-language translation of the notice packet. Hartranft Decl. (ROA 92) Ex. B. Should the notice be provided in Spanish (or any other languages)? If so, a certified copy of the translated notice should be attached to the proposed order as an exhibit. <u>As to the proposed order (ROA 104):</u> 24. The proposed order should be revised consistent with the above. 25. The settlement agreement, any amendment(s) thereto, and the notice packet (in all languages) should be attached to the proposed order as exhibits. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>January 14, 2027 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.
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12	Sanchez v. Orthowest MSO, LLC 2024-01423708	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$935,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$2,500.00 for enhancement award to plaintiff (not to exceed); \$280,500.00 for attorneys' fees (not to exceed); \$25,000.00 for attorneys' costs (not to exceed); \$10,500.00 for settlement administration fees (not to exceed); and \$90,000.00 total PAGA penalties (\$58,500.00 to LWDA). Plaintiff is ordered to file and serve <u>by August 27, 2026</u> a revised proposed order (stating the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendments thereto; notice packet (in English and Spanish)). The notice and its attached forms should be revised as follows: - In the fifth bullet point in section 3, the following phrase should be removed: "30% of the Gross Settlement Amount." The parentheses around "\$280,500.00" should also be removed; - The first sentence in the exclusion form (under "REQUEST FOR EXCLUSION FORM") should be removed; - The methods of submitting the exclusion form stated on the form are inconsistent with the settlement agreement and the notice and should be revised; - The first sentence in the objection form (under "OBJECTION FORM") should be removed; and - The methods of submitting the objection form stated on the form are inconsistent with the settlement agreement and the notice and should be revised. The final approval hearing is scheduled for <u>January 21, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
13	Uroza v. Niki Investments, Inc. 2025-01523955	Off calendar.